

1 can get all these things out of the way.

2       There are a number of different things that  
3 happen once causation is established. Fault, for  
4 example, it creates a new fact for the Court and we  
5 are able to use that as we move forward.

6       So causation is absolutely the critical  
7 piece. They are claiming, still to this day -- that  
8 you stated yesterday in front of all the jury people  
9 that they are claiming there is no fault, nothing. So  
10 we need to get that out of the way. Causation, we  
11 can't move forward without that.

12       You stated clearly that: We don't have  
13 causation for the medical, we don't have causation for  
14 the other damages.

15       That is the only way this thing can go down.

16       THE COURT: I didn't say: You don't have  
17 causation for medical. What I said is there are no  
18 experts that can testify with respect to causation in  
19 this case.

20       I am not preventing you, per my earlier  
21 motion in limine, from telling the jury some aspect of  
22 what happened to you.

23       These are matters of common experience. The  
24 law indicates -- even in the cases that Defense  
25 Counsel have cited -- allows you to discuss things  
26 such as your opinion of what happened and to describe  
27 your injuries.

28       However, I am just warning you that the